

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 9TH DAY OF NOVEMBER, 2016

BEFORE

THE HON'BLE Dr.JUSTICE VINEET KOTHARI

WRIT PETITION No.15888/2016 (LB - RES)

BETWEEN

Sri.Babukumar
Aged 52 years
S/o late Sri Amruthanathan
Residing at No.17, IMS Building
I Block, 13th Cross, Hoysalanagar
Bengaluru East
Bengaluru – 560 039

...Petitioner

(By Sri.G.R.Mohan, Adv.,)

AND

1. The State Election Commissioner
Karnataka State Election Commission
Cunningham Road, Vasanthanagar
Bengaluru – 560 052

2. Sri.S.Anandkumar
Aged 35 years, S/o late Samu
Residing at No.67, Gangmen Quarters
Ananthnayar Road, Murphy Town
Halasuru, Bengaluru – 560 008

...Respondents

(By Sri.K.N.Phanindra, Adv., for R1;
Sri.V.B.Shivakumar, Adv., for R2)

This writ petition is filed under Articles 226 and 227 of the Constitution of India, praying to issue a writ of mandamus to R-1 to consider the representation of the petitioner dated 30.01.2016 at Annex-D to hold an enquiry and lodge a complaint against the R-2 for the offences under Sec.125A of the R.P Act and Section

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171G IPC and thereafter initiate disqualification proceedings against the R-2 for being elected as an independent candidate to the Hoyasalanagar BBMP ward councilor based on false information.

This writ petition coming on for Orders, this day the Court made the following:-

ORDER

Mr.G.R.Mohan, Adv., for Petitioner.
Mr.K.N.Phanindra, Adv., for R1;
Mr.V.B.Shivakumar, Adv., for R2.

1. The controversy raised in this writ petition is fully covered by the decision of the Division Bench of this Court in the case of K.Devadas Vs. The State Election Commission & others – WA.No.1165/2016, decided on 27.10.2016, in which the Division Bench has held as under:-

“6. The remedy of the aggrieved person is to lodge a complaint before the jurisdictional magistrate, invoking Section 125A of the Representation of the People Act, 1951, and the jurisdictional magistrate may consider the matter after giving an opportunity of hearing to the complainant, in accordance with law.

7. Therefore, the impugned order is set aside. However, liberty is reserved to the

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writ petitioner, the respondent No.3 in the appeal, to approach the jurisdictional magistrate for ventilating his alleged grievance. We are, however, not expressing any opinion on the merits of the case.

8. The writ appeal is allowed.

9. We make no order as to costs.”

2. The present writ petition filed by a voter is liable to be disposed of in terms of the above order.

3. Writ petition is disposed of accordingly.

**Sd/-
JUDGE**

*ck/-